

ORDER SHEET
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT
W.P.No.29437/2013

Muhamamd Ijaz Ahmad Chaudhry Versus Election Tribunal etc.

S.No. of order Proceeding	Date of order Proceeding	Order with signature of Judge, and that of parties of counsel, where necessary
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19.11.2013. Mr. Hafeez Saeed Akhtar, Advocate.

Through this constitutional petition, the petitioner has impugned the order dated 06.11.2013 passed by the learned Election Tribunal, Lahore whereby while disposing of the objection regarding the admissibility of documents, the learned Election Tribunal has exhibited the documents produced by respondent No.2 in his examination in chief.

2. Brief facts giving rise to this petition are that petitioner and respondent No.2 alongwith 15 other candidates contested the General Election held on 11.05.2013 to the seat of N.A.108 (M.B.Din). The petitioner was declared as returned candidate after obtaining 85009 votes whereas respondent No.2 was runner up after getting 11220 votes. Respondent No.2 being aggrieved, filed an election petition before the Election Tribunal at Lahore. The petitioner filed his written statement and after framing the issues on 05.08.2013 the parties put to trial. The grievance of the petitioner is that respondent No.2 while giving his examination in chief tendered documentary evidence which was not mentioned in the election petition nor same was relied upon. The petitioner objected the admissibility of these documents, however, the learned Election Tribunal vide order dated 06.11.2013 disposed of the objection by allowing the documents to be exhibited; hence this constitutional petition.

3. The learned counsel for the petitioner argued that the documents which were exhibited by respondent No.2 were neither mentioned in the election petition nor the same were relied upon and in fact no list of documents under Order 7 Rule 14 or Order 13 Rule 1 CPC was filed by respondent No.2. Further no application was moved for adducing the documents not appended with the petition. Contends that the aforesaid documents were inadmissible in evidence and the impugned order is not sustainable in the eye of law. In response to the query regarding the maintainability of this constitutional petition, it is argued that as the impugned order is patently illegal, therefore this constitutional petition is maintainable. Reliance is placed on Syed Nayyar Hussain Bukhari vs. District Returning Officer, NA 49 Islamabad and others (PLD 2008 SC 487); Messrs Javed Nazir Brothers Pvt. Ltd. vs. Al Barak Islamic Bank and others (2008 CLC 722); Asif Jameel and others vs. The State (2003 MLD 676); Jamal Din and others vs. Additional District Judge, Jhang and others (1990 MLD 1934); and Sher Baz Khan and others vs. Mst. Malkani Sahibzadi Tiwana and others (PLD 2003 SC 849).

4. I have heard the learned counsel for the petitioner and also gone through the record appended with this petition.

5. The perusal of the impugned order dated 06.11.2013 shows that though the objection was raised by the learned counsel of the petitioner on the admissibility of documents, however, during the arguments it was on the satisfaction of the learned counsel for petitioner that clarification was given to the effect that the question of admissibility in evidence, relevancy and evidentiary value of all these documents would be subject to scrutiny and criticisms from the return candidate and that all these questions would be answered at the time of final arguments/final order. The learned Election Tribunal was also in agreement with the learned counsel for petitioner/returned candidate that mere adducing the documents in evidence does

not mean that the same have been believed and accepted and it would be seen at trial as to what is the worth and significance of these documents as per law. At this juncture, it is expedient to reproduce the relevant portion of the impugned order as under:-

“Learned counsel for the Returned Candidate is satisfied if it is made clear that the questions of admissibility in evidence, relevancy and evidentiary value of all these documents would be subject to scrutiny and criticism from the returned candidate and that all these questions would be answered at the time of final arguments/final order. I am in agreement with the learned counsel for the Returned Candidate for the reasons that mere adducing documents in evidence does not mean that the same have been believed and accepted. It would be seen at trial as to what is the worth and significance of all these documents as per law. Objections disposed of accordingly.”

The aforesaid clarification/observation was made by the learned Election Tribunal to the satisfaction of the learned counsel for the petitioner/returned candidate, who did not object to the observation. Further the election petition filed by the respondent No.2 is admittedly pending adjudication before Election Tribunal, who has the jurisdiction to decide the same in accordance with law. The case is yet at evidence stage and the learned Election Tribunal on the objection of the petitioner has already held that mere adducing documents in evidence does not mean that the same have been believed and accepted and it would be seen at appropriate time of trial as to what would be the worth and significance of these documents. The Election Tribunal has all the powers of Civil Court while trying Election Petition as per provision of Section 64 of the Representation of People Act, 1976. It is established principle of law that all procedures are meant for advancement of cause of justice and not for purpose of entrapping a litigant or to punish him. It is held in Allah Ditta v. Barkat Ali and 3 others (1992 SCMR 1974) that proper place of procedure in any

system of administration of justice would be to help and not to thwart the grant to the people of their right and further held that all technicalities have to be avoided unless it is essential to comply with them on the ground of public policy. In view of above, it cannot be said that the impugned order, which was also to the satisfaction of counsel for petitioner/returned candidate is patently illegal or without jurisdiction warranting interference by this Court, in Constitutional jurisdiction.

6. In any case under Article 225 of the Constitution of the Islamic Republic of Pakistan, 1973, the election is to be challenged through an election petition. The election process should not be interfered with by exercising power under Article 199 of the Constitution which will not only circumvent the intention of the legislature under Article 225 of the Constitution but will also delay the decision of the main case before Election Tribunal. The above view is supported by the observation made by their lordships of Hon'ble Supreme Court of Pakistan in case of Election Commission of Pakistan vs. Javed Hashmi (PLD 1989 SC 396). The relevant observation reads as under:-

“Accordingly, what is intended to be achieved by the exercise of the power under Article, 199 is achieved by the exercise of the appellate power by the Supreme Court in an appeal against the decision of the Tribunal not at an intermediate stage but only after the election is over. There is, thereafter, no scope of any interference by the High Court under Article 199 of the Constitution to interfere with the process of election at an intermediate stage or question the correctness of the decision of the Election Tribunal on any ground whatsoever upon an election petition filed to question the validity of the election.”

7. I have also noted that writ petition has been filed against an interim order which is not amenable to the constitutional jurisdiction of this Court. Reliance is placed on Mushtaq Hussain Bokhari v. The State (1991 SCMR 2136); Ibrahim v. Muhammad Hussain (PLD 1975 SC 457) and Allah Ditta v. Addl. District Judge, etc. (NLR 1996 CLJ 15). Further as per

provisions of Section 67(3) of the Representation of People Act, 1976 any decision of the Election Tribunal is appealable to the Hon'ble Supreme Court. Therefore the petitioner having adequate alternate remedy, this petition is not maintainable on this ground as well. The learned Division Bench of this Court in Sh. Rashid Ahmad vs. The Electional Tribunal Comprising Mr. Justice Mian Nazir Akhtar of Lahore High court Lahore and another (PLD 1993 Lahore 791) while dealing with the interim order, passed by the learned Election Tribunal, where the application for summoning of witnesses was allowed, held that the writ petition is not maintainable against the interim order and under Section 67 ibid the appeal lies to the august Supreme Court. It is expedient to reproduce the relevant observations as under:-

“The writ petition has been filed against an interim order. As per provision of section 67 of the Representation of the People Act, 1976, any decision of the election Tribunal is appealable to the Supreme Court. The word ‘decision’ has been used in section 67 of the Representations of the People Act, 1976 and it does not always refer to a final order. It shall also include an interim order. . The petitioner if aggrieved by the order could have, hence filed an appeal before the Supreme Court of Pakistan and at any rate in case the ultimate final order is passed against him, he shall be entitled to challenge the interim impugned order in that appeal, in view of the established legal position to the effect that while challenging final order, the interim orders are also challengeable. Hence, writ petition against the interim order cannot be entertained as it will tend to delay the disposal of main case which is an election petition and is to be decided within a specified period of time expeditiously. It has been held in cases of Ibrahim v. Muhammad Hussain PLD 1975 SC 457, Abdul Bari v. Government of Pakistan and 2 others PLD 1981 Karachi 290, Allah Yar Khan v. Mst. Sardar bibi and others (1986 SCMR 1957) and Mushtaq Hussain Bokhari v. The State (1991 SCMR 2136), that interim orders are not amenable to the exercise of the writ jurisdiction of this Court inasmuch as entertainment of writ in such like cases delays the decision of main cases wherein the interim orders have been passed. The judgments cited by the

learned counsel for the petitioner are distinguishable on facts, hence, are not of help to him.”

8. In view of the above discussion, I am of the view that the impugned order dated 06.11.2013 is neither patently illegal nor without jurisdiction warranting interference in Constitutional jurisdiction. Further writ petition is not maintainable being against an interim order and bar of Article 225 of the Constitution and also for having alternate remedy available before the august Supreme Court under Section 67 of the Representation of People Act, 1976. The case law cited by the learned counsel for the petitioner are not germane to the facts and circumstances of this case; none of the judgments relied upon are arising out of the interim order passed by the Election Tribunal, therefore, the case law relied upon is of no help to the petitioner in the given circumstances.

9. In view of above discussion, this petition has no merit and the same is hereby **dismissed** in *limine*, with no order as to costs.

(ABID AZIZ SHEIKH)
JUDGE

Approved for reporting.

Judge

Raza